

OUTLINE OF EVIDENCE – MR CORY LEA SHEPHERD (APPELLANT)

Served pursuant to direction 2 of the Further Directions Order (3) dated 19 August 2026. Not filed in the Industrial Registry.

I will give evidence of the following. Paragraph references are to the notice to admit facts served 28 August 2026 (the Notice). The events at topics 2 to 7 are established by the facts admitted on 8 September 2026, except the emergency codes of 17 and 18 March 2024, which are not admitted and which I give from my own knowledge; my evidence on them is what they were from the console and their effect on me.

- 1. Employment and the role.** I commenced at Logan Hospital Switchboard on 25 March 2019 as a casual, became permanent from 3 March 2021 and full time from 16 October 2023, as a continuous shift worker. The Switchboard is the hospital's communications hub: in a Code Blue or MET call it is the Switchboard that activates and pages the response team, and an error or delay at the console is an error or delay in the emergency response. What each code is: a Code Blue, a cardiac or respiratory arrest; a MET call, a deteriorating patient; a Code Grey, an unarmed threat; a neonatal MET call, a newborn; what an urgent pathology result is, and what turns on the clinician being reached in time. Between 15 and 50 emergency codes go out in 24 hours; some 200 to 300 calls a shift, many from people distressed, frightened or in crisis; urgent results relayed doctor to doctor; and complaints from the public, clinicians and staff arrive at the console first, to the operator on duty, and those my manager did not action came back to me. The standing condition of the role over the period: from the moment I logged onto the board I was held responsible for what went wrong anywhere in that system, while the means of correcting it, the directory, the on-call roster, my own roster and my pay, were held by others. [Notice ¶¶ 1–16, 26–48, 182–223]
- 2. Sleep and fatigue.** My sleep on rotating shifts across 2023 and 2024 and the melatonin and temazepam prescribed on 16 November 2023; that after late shifts I would sleep in the car before driving home. The shifts of 17 and 18 March 2024: my travel time each way, finishing at 23:00 and starting at 06:00, and the rest and sleep actually available; that on the evening of 17 March I handled a MET call and, four minutes later, a Code Blue to the same bed, then a further MET call; that 18 March was a Monday day shift, the week's peak, and that between 06:00 and 14:00 I handled a Code Grey, two MET calls (one cancelled a minute later) and two neonatal MET calls, in that state, while answering that queue of urgent handover, distressed callers and complaints; the register of emergency codes kept at the Switchboard, its entries for 17 to 19 March 2024, and the screen capture of its March 2024 sheet that I took; and that those shifts were not a staff-initiated swap, the only case in which, by Ms Forrest's email of 7 July 2026, the 8-hour agreement applied. The sequence that followed: my request of 8 April 2024; Ms Taylor's reply of 9 April that she had escalated it to Human Resources "to confirm policies around this"; no response until 1 May, when the fatigue payment was refused "after a consultation with payroll and Human Resources" on the basis of the 2020 agreement, so that the day of 19 March came from my own leave; the toolkit at clause 10.4.1 of the Operations Manual, sent to Ms Taylor, with no response; Ms Reese sending the fatigue guideline to Human Resources on 20 May 2024; that no fatigue risk assessment was made and no FRMS register kept; that Metro South has since stated in writing that those records "do not exist", that FRMS training applied only to clinical staff, and that fatigue management assessment at the Switchboard began only after 30 June 2024. [¶¶ 17–25, 211–227, 232–261, 263–271, 285]
- 3. Rostering: lates then earlies.** The pattern on my roster line of late shifts followed by early shifts, and of nights, days off, then nights again, raised on 16 April 2024; that rostering errors on my line recurred across roster periods; and Ms Reese's email to Human Resources of 10 May 2024 stating "a few rostering errors made by Chloe with regards to Cory's line in past rosters"; and that I was not told my roster proposal would not be considered, and learned of Ms Reese's email of 10 May 2024 saying so only from the Respondent's disclosure in July 2025. [¶¶ 211–223]
- 4. Pay and entitlements.** The public holidays I was not rostered between February and April 2024 and the difference to my pay. The loop: on 8 April 2024 I asked Ms Taylor to review my pay; on 9 April she directed me to raise the older dates through MyHR payroll enquiries; Payroll told me the payments had to be processed by my manager, which I relayed to her on 24 April; on 3 May Payroll wrote to her, copying me, to "submit an AVAC to correct these shifts for each fortnight"; when I followed up with Payroll on 10 May, Payroll on 13 May told me to "speak to your Line Manager"; on 21 May she was still "waiting payroll confirmation"; on 28 May I was asked to sign a validation of claims older than three months. That under the payroll process only my manager could submit the AVAC. The February 2024 special pandemic leave application: what I attached, the two declines, and the approval on the same material; and the effect on me of being unable to have those errors resolved over those months. [¶¶ 114–142, 182–210, 242–246]
- 5. The database, the misdirected calls, and what I could not fix.** That from 18 July 2023 operators could no longer correct database entries and the changes book was removed, so a wrong number waited on Ms Stibbard or Ms Taylor and after hours had to "wait until either Chloe or myself are back"; the directives of 15 April, 19 April and 9 May 2024, and that I was not consulted before any of them. That from 15 April 2024, when Ms Taylor notified the department that she and Ms Stibbard had placed themselves on after-hours call, departments and clinicians ringing during my shifts with pager and phone updates asked for her, and on many occasions neither they nor I could have the update or issue resolved during the shift. The MASPER Registrar's "Switchboard issues" emails to Ms Taylor of 3 May 2024 at 3:06 pm and 8 May at 5:28 pm, nine calls reaching the wrong team, including the MET call team ringing because "switchboard could not tell them where VHUB was"; that her first response came on 9 May at 9:20 am, five days and eighteen hours after the first, asking Dr Wong for her business hours because they were "not provided on the rosters" and that her phone was "switched off"; and at 10:15 am telling the team of "many ongoing issues" about calls "transferred to the wrong medical teams"; the Integrated Respiratory Service writing on 15 May and again on 20 May 2024, when it said "we can not help patients or other clinical staff"; and that on each occasion the delay built up while the correction waited on someone else, and what that meant for the codes and calls I was handling at the time. [¶¶ 39–113]
- 6. Ms Taylor's hours: the question, the retraction request, and the answer.** That neither I nor the department knew her office hours; my email of 15 May 2024 at 1:15 pm asking her to share them; Ms Reese's reply that evening asking me to retract it, which I did; that two days later, on 17 May 2024 at 9:30 am, Ms Taylor sent the whole department an email stating "Otherwise my hours are from 06:30-14:30", the very information I had asked for; and Ms Reese's reply of 21 May 2024 asking me to identify the directives I was concerned about. [¶¶ 70–88]
- 7. The complaints, and what followed them.** The communication book entry of 6 June 2023, a reminder about the monthly update of doctors' contact numbers, and its removal; my email of 16 June 2023 recording no consultation on major changes; the concerns I raised on 7 August 2023 and the responses; my complaint of 13 May 2024, later determined to be a public interest disclosure (content not set out); my interest in becoming the Switchboard union delegate and what followed; and that, on Metro South's own statements, no safety assessment, investigation or change of procedure followed any complaint I made about misdirected calls, directory accuracy or fatigue before 30 June 2024, which is what Dr Hawes recorded on 1 July 2024 as "they don't listen to his complaints". What I said on these matters is in my emails; I never said anything hostile about Ms Taylor or any other member of staff. [¶¶ 143–153, 155–181, 266–267, 287–294]
- 8. My health before June 2024.** That before 18 June 2024 I had never been diagnosed with or treated for depression. My general practitioner's record of 16 November 2023 notes poor sleep with shift work, that I could not do shifts without a good sleep, no psychological illness such as depression or psychosis, and mood good. The ADHD and anxiety noted in my history in October 2022, and the psychiatrist referral to Dr Amini renewed on 16 May 2024, the day after the request that I retract my email, listing the medications I was then taking, none of them an antidepressant or an anxiolytic, and for which no appointment could be obtained. [General-practice records disclosed by the Respondent; ¶¶ 76–77]
- 9. Onset, presentation and diagnosis.** That I last worked a shift on 3 June 2024; that on days in May 2024 and in the first week of June 2024 I drove to work, could not bring myself to enter the building, and called in sick from the car park. My symptoms from about 18 June 2024 and their effect on sleep, concentration, self-care and relationships, and on my capacity for work, from being certified unfit from 1 July 2024 to returning on reduced hours and the restrictions recorded in the Checklist of 3 July 2026. Attending Dr Slawinski on 28 June 2024, whose note records "stress at work" and "upset by people not following rules", and Dr Hawes on 1 July 2024, whose note records "work stress", that "they withhold pay at times, no overtime- not processed, manipulate his roster- so he works lates then earlies". Dr Hawes's certificates of 1 July and 8 September 2024 and his psychiatrist referral. My first consultation with Dr Krishnaiah on 24 October 2024, on that referral, when I was told I had major depressive disorder with anxiety state, confirmed by the practice in writing at 11:45 am that day, my fluoxetine increased and quetiapine added at night; his written report of 13 February 2025; and my treatment since. The matters at paragraphs 2 to 7 above, and their effect on me as each occurred and as they accumulated, are the matters I reported to each doctor, as their records show; the events those records name are the facts admitted on 8 September 2026 (Tabs M1 to M4). I offer no clinical or diagnostic opinion.
- 10. After 18 June 2024, and documents.** Meetings scheduled while I was on certified leave; my employment ended under abandonment provisions in October 2024 while I held current certificates, and my later reinstatement; the months without pay after the injury and the claim, with the pay errors never resolved, and the leave since. Documents: rosters and payslips; my emails and messages with my line manager and the Director; the employer's leave and payroll records; and Metro South Health's letter of 5 June 2026.

This outline states the topics on which I will give oral evidence. It is not a statement of evidence and is not verified.